



File No.: EXP202300969

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 20, 2022, a complaint was filed with entry registration number REGAGE22e00058385647 before the Spanish Agency for Data Protection against ORANGE ESPAGNE, S.A.U. with NIF A82009812 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls on line ***TELEFONO.1 registered in the Robinson List.

Along with the notification, the following is provided:

- Certificate of registration of the number in the Robinson List since November 2, 2018.
- Screenshot of an incoming call from number ***TELEFONO.2 at 12:16 lasting 32 seconds.
- Screenshot of an incoming call from number ***TELEFONO.3 at 14:05 lasting 44 seconds.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on February 2, 2023, as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On March 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

In the diligence of May 8, 2023, it is noted that the result of the consultations to:

<https://numeracionyoperadores.cnmc.es/portabilidad/movil/operador>

the operator of the phone number ***TELEFONO.2 is Orange.

<https://numeracionyoperadores.cnmc.es/portabilidad/fija/operador>

the operator of the phone number ***TELEFONO.3 is Voxbone, S.A.

<https://numeracionyoperadores.cnmc.es/operadores/N-9046752C?p=operadores>

the notification address of the operator Voxbone S.A. is Calle Claudio Coello 37 2º 28001 Madrid.

On May 8, 2023, the operator Orange was requested for the following information regarding the line ***TELEFONO.2:

1. Ownership, specifically from December 14, 2022, to the present, specifying name/business name, NIF/CIF, address of the holder, and, if applicable, installation address if different from that of the holder. If the holder is a “reseller,” provide the contract between the parties.
2. Holder and billing address.

3. In case of cancellation or change of ownership during the period indicated in point 1, information is requested regarding the date on which the cancellation occurred.
4. In case the line was ported/resold prior to the day or period specified in point 1, information is requested regarding the date it was ported, as well as the identification of the beneficiary operator.
5. Confirmation of the execution of the following call from the number in point A:

***TELEFONO.2

to the recipient phone number cited ***TELEFONO.1 on December 14, 2022, between 11:00 and 14:00 hours.

The electronic notification was received by Orange on May 9, 2023.

On May 8, 2023, the operator Voxbone S.A. was requested for the following information regarding the line ***TELEFONO.3:

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1.

Ownership, specifically from December 14, 2022, to the present, specifying name/company name, NIF/CIF, address of the owner, and, if applicable, installation address if different from that of the owner. If the owner is a "reseller," provide the contract between the parties.

1.

Owner and billing address.

2.

In case of cancellation or change of ownership during the period indicated in point 1, information is requested regarding the date on which the cancellation occurred.

4. In case the line was ported/resold prior to the day or period specified in point 1, information is requested regarding the date it was ported, as well as the identification of the benefiting operator.

3.

Confirmation of the execution of the following call from the number in point A:

***TELEFONO.3

to the recipient phone number cited

***TELEFONO.1 on December 14, 2022, between 12:00 and 16:00 hours.

The electronic notification to Voxbone S.A. was expired.

On May 24, 2023, the operator ORANGE ESPAGNE S.A.U. informs that the operator of line

***TELEFONO.2 prior to April 10, 2023, is VODAFONE ESPAÑA, S.A.U.

Since the notification to VOXBONE, S.A. C/ Claudio Coello, 37, 2nd 28001 MADRID, on May 19, 2023, was expired, a query was made in Monitoriza

(<https://monitoriza.axesor.es/#buscador/N9046752C>) and it was found that VOXBONE S.A. has the NIF: W0172426I, Address: CALLE ALBASANZ, Nº 71, 28037 MADRID.

On June 12, 2023, a request was sent to VOXBONE S.A. NIF: W0172426I, address: CALLE ALBASANZ, Nº 71, 28037 MADRID for the same information as on the first occasion.

On June 12, 2023, a request was sent to XFERA MÓVILES, S.A. (A82528548) AVENIDA DE BRUSELAS, Nº 38, 28108 ALCOBENDAS MADRID, operator of the claimant's line, to confirm the identity of the line's owner and the receipt of the calls subject to the claim.

On June 26, 2023, Xfera (claimant's operator) responded to the request confirming that on December 14, 2022, the number ***TELEFONO.1 received the following calls:

- ***TELEFONO.2: start time: 12:16:50 and end time: 12:17:23.

- ***TELEFONO.3: start time: 14:06:01 and end time: 14:06:45.

On July 26, 2023, the data protection delegate of the Spanish Association of Digital Economy (Adigital) responded to this Agency's inquiry regarding the inclusion of the claimant's phone in the Robinson list of Adigital on the date of the events, confirming the fact and the certificate presented by the claimant.

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On July 25, 2023, the request was reiterated with postal notification to Voxbone, resulting in the recipient being unknown.

On August 24, the Voxbone website: www.voxbone.com redirects to the page www.bandwidth.com (diligence 24/08/2023).

On August 24, 2023, Bandwidth Iberia S.L. was requested for the information previously requested from Voxbone. The result of the notification was expired on 4/09/2023.

On August 31, 2023, VODAFONE ESPAÑA, S.A.U. was requested for the same information that was requested from Orange on May 8, 2023.

On September 20, 2023, the response from Vodafone España, S.A.U. was received stating that the telephone line ***TELEFONO.2, on December 14, 2022, was associated with the company JOYCAR EXPRESS SL, with CIF B54386982, registered office at Calle Niza, number 12, postal code 03630, in Sax, Alicante.

The line ***TELEFONO.2 was ported on April 6, 2023, to the operator AMENA.

It confirms that on December 14, 2022, at 12:16 hours, a call was made from number ***TELEFONO.2 to number ***TELEFONO.1 lasting 0:33 s.

On September 20, 2023, the request to BANDWIDTH IBERIA, S.L. was reiterated.

On September 27, 2023, a response was received from JOYCAR EXPRESS SL, stating that their company is engaged in logistics (pickup and delivery of goods), and that they made the call on December 14 at 12:16 hours lasting 0:33 s to the claimant, to attempt to confirm that the claimant was at home to pick up the package that the claimant had requested to be transported to the company Enviaia.com, of which JOYCAR EXPRESS SL is a franchisee. Screenshots justifying the order and the pickup of the package a few minutes after the call were attached.

On September 28, 2023, A.A.A. with DNI ***NIF.1 received the reiteration of the request sent to BANDWIDTH IBERIA, S.L. on September 21.

The owner of the telephone number ***TELEFONO.3 on December 14, 2022, could not be determined because the corresponding operator, according to the inquiry of May 8, 2023, to the Registry of numbering and telecommunications operators

<https://numeracionyoperadores.cnmc.es/portabilidad/fija/operador>, VOXBONE. S.A. has not responded to the requests of this Agency, nor has Bandwidth Iberica S.L., the current recipient of the domain <https://voxbone.com/>.

The owner of line ***TELEFONO.3 could not be verified after the following actions were taken:

- 8/05/23 Inquiry diligence to the CNMC.
- 8/05/2023 Request to VOXBONE, S.A. N9046752C C/ Claudio Coello 37, 2nd 28001 Madrid with result expired.
- 12/06/2023 Request to VOXBONE, S.A. W0172426I, C/ Albasanz, 71, 28037 Madrid with result expired.

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- 25/07/2023 Postal reiteration to VOXBONE, S.A. N9046752C C/ Claudio Coello 37, 2º 28001 Madrid with result returned as unknown on 9/08/2023.

- 25/07/2023 Postal reiteration to VOXBONE, S.A. W0172426I, C/ Albasanz, 71, 28037 Madrid with result returned as unknown on 8/08/2023.

- 24/08/2023 Diligence in which it is noted that consulting the website voxbone.com leads to Bandwidth.com.

- 24/08/2023 Requirement to BANDWIDTH IBERIA S.L. B88472758 with result expired due to lapse on 04/09/2023.

- 21/09/2023 Electronic reiteration to BANDWIDTH IBERIA S.L. B88472758.
- 21/09/2023 Postal reiteration to BANDWIDTH IBERIA S.L. B88472758 AVDA. DE BRUSELAS, 15 2ª
- OFFICE 234 28108 ALCOBENDAS.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Final provision sixth, section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

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III

Conclusion

The investigations carried out by this Agency indicate that the call from the line ***TELEFONO.2 belongs to the logistics company JOYCAR EXPRESS, S.L., which confirms having made the call to the claimant's number, to confirm the collection of a shipment that the claimant himself had requested from the company Enviaia.com.

The operator of the line ***TELEFONO.3 from which the other call was made is VOXBONE, S.A. which has not responded to the repeated requests from this Agency, nor has Bandwidth Iberia S.L., the current recipient of the domain <https://voxbone.com/>, so it has not been possible to ascertain the owner of this line, nor confirm the claimed call.

Thus, as it has not been possible to attribute responsibility for the making of the call and in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to ORANGE ESPAGNE, S.A.U., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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